

26STCV04956 26STCV04956

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C08%2F13%2F2026

Source SHA-256: ab90085c3865c53c081bcf64aac9131ac4f453da909af08bffeecd07ae81802f8

Case Number: 26STCV04956 Hearing Date: August 13, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:27 PM on August 12, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 12, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges

while she was walking towards a service area in an Apple Store, a male employee standing with his back to her flung his hand out in full force striking her in the left eye.

Plaintiff demurs to the Amended Answer to the Complaint and moves to strike portions thereof.

TENTATIVE RULING

Plaintiff Tracey Bing's demurrer to the Amended Answer to the Complaint is OVERRULED as to the first, third, fifth affirmative defenses, SUSTAINED with leave to amend as to the second and seventh affirmative defenses and SUSTAINED without leave to amend as to the sixth affirmative defense.

Plaintiff's motion to strike portions of the Amended Answer is DENIED as to Portion 1—Page 2:2-5, Portion 2—page 2:5-8, Portion 3—Page 4:19-20, Portion 4—Page 2:11, Portion 5—Page 3:21-23, Portion 6—Page 3:26-4:2 and GRANTED without leave to amend as to Portion 4—Page 4:28 – 5:1 (attorneys' fees and costs).

Defendant is given 30 days' leave to amend where indicated.

ANALYSIS

Plaintiff's reply briefs for both the demurrer and motion to strike argue that the Court should disregard Defendant's opposition papers because (1) there is no authorization for filing a single opposition to multiple motions, and (2) the opposition uses extensive single-spacing of lines, in contravention of Rule of Court 2.108. The Court finds that there is no basis to strike or disregard the opposition papers. Rule of Court 2.108(3) allows the use of single-spacing for quotations, and Defendant's use of single-spacing is limited to quotations from the Answer. Moreover, the single-spacing does not appear intended to circumvent the 15-page limit of Rule of Court 3.113(d), because the opposition memorandum contains only 6 pages of argument.

As for Plaintiff's objection to the use of a single opposition to both the demurrer and the motion to strike, Plaintiff does not cite any statute or Rule of Court that prohibits a combined opposition brief. The combined opposition in this instance creates no confusion, because Plaintiff's two forms of attack on the Answer are being heard together under a single CRS reservation. In the Court's view, economy in filings is a virtue, not a vice.

Demurrer

Meet and Confer

The Declaration of James C.D. Carr reflects that Plaintiff's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

“New matter constituting an affirmative or special defense must be specially pleaded in the answer; otherwise, it cannot be relied on. . . .” (Richter v. Adams (1937) 19 Cal.App.2d 572, 576.)

(1) In General.

An affirmative defense must be pleaded in the same manner as if the facts were set forth in a complaint. In other words, the general requirement of stating the ultimate facts applies and, where particularity in pleading is necessary in a complaint, it is equally necessary in an affirmative defense involving the issue. (Bruck v. Tucker (1871) 42 C. 346, 352; Greiss v. State Inv. & Ins. Co. (1893) 98 C. 241, 244, 33 P. 195; Bradbury v. Higginson (1914) 167 C. 553, 557, 140 P. 254 [if matter set up is equitable cause of action, answer must contain all averments essential to statement of cause of action as such]; see 19B Am.Jur. P.P. Forms (2007 ed.), Pleading, §85 et seq.)

(2) Argumentative Denials. The affirmative form in which the defendant phrases his or her answering averments does not make them new matter. If they merely contradict essential allegations of the complaint, they are simply denials in affirmative form (“argumentative denials”). (Frisch v. Caler (1862) 21 C. 71, 74; Goddard v. Fulton (1863) 21 C. 430, 436; Rancho Santa Margarita v. Vail (1938) 11 C.2d 501, 543, 81 P.2d 533; Jolley v. Clemens (1938) 28 C.A.2d 55, 65, 82 P.2d 51, supra, §1077.)

(5 Witkin Cal. Proc. Plead § 1082.)

Affirmative defenses consisting only of legal conclusions do not survive demurrer. Westly v. Board of Administration (2003) 105 Cal.App.4th 1095, 1117: Affirmative defenses cannot be “proffered in the form of terse legal conclusions, rather than as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’ (Citation omitted.)” (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.)

Plaintiff demurs to the Amended Answer to the Complaint (which asserts a sole cause of action for negligence) as follows:

1. First Affirmative Defense (No Damages).

OVERRULED.

This is a denial
in affirmative form and thus facts constituting new matter need not be pled.

2. Second Affirmative

Defense (Failure To Mitigate Damages).

SUSTAINED

with leave to amend.

Defendant must
plead facts as to what Plaintiff reasonably could have done, but failed to do to
mitigate her damages. (Erler v. Five
Points Motors (1967) 249 Cal.App.2d 560, 568.)

3. Third Affirmative

Defense (Comparative Negligence).

OVERRULED.

The Amended

Answer pleads the following facts constituting new matter:

Plaintiff failed to exercise reasonable
care and caution while navigating the Apple Store, including by failing to maintain
a safe and reasonable distance from the employee with whom she allegedly made contact,
by approaching the employee with whom she allegedly made contact from behind while
failing to maintain arm's length or another reasonable amount of distance from him,
and by failing to make reasonable observations of her surroundings to avoid contact
with this employee. More specifically, Plaintiff attempted to pass the employee
with whom she allegedly made contact with insufficient space between her and him,
notwithstanding that he had his back to her, which was a proximate cause of the
alleged incident. As such, Plaintiff's action is barred and/or any judgment that
might be rendered against Apple must be reduced by the degree of comparative fault
of Plaintiff.

(Amended Answer, ¶ 5.)

4. Fifth Affirmative

Defense (No Duty).

OVERRULED.

The Amended

Answer pleads the following facts constituting new matter:

9. Apple owed no duty to Plaintiff with

respect to the incident, injury, or relationships alleged in the Complaint. Specifically, Apple had no duty to prevent every instance of incidental physical contact between persons lawfully present in its retail store. The alleged contact between Apple's employee and Plaintiff constituted an ordinary incident of everyday life. Incidental, ordinary physical contact of the kind that routinely and inevitably occurs in occupied retail environments does not give rise to actionable negligence. The employee's alleged hand gesture, an everyday gesture which occurred during the course of ordinary conversation with another customer, was a commonplace and unremarkable movement.

10. In addition, the incidental contact

between the employee's hand and Plaintiff, which occurred while the employee was engaged in ordinary conversation and gestures, was an unintentional occurrence. Apple also has no duty to restrict or prohibit its employees from engaging in ordinary conversational gestures.

(Amended Answer, ¶¶ 9, 10.)

5. Sixth Affirmative

Defense (No Negligently Maintained Condition).

SUSTAINED

without leave to amend.

The Complaint

does not allege a negligently maintained condition, but rather, a failing to instruct its employees not to gesticulate in a manner which might strike someone:

17. Apple breached its duty to keep

the Apple Store safe by failing to exercise reasonable care, by neglecting to take measures including but not limited to providing specific instructions or guidelines to its employees on how to respond when someone was injured at the Apple Store,

and how to move while amid customers.

(Complaint, ¶ 17.)

6. Seventh Affirmative

Defense (Compliance with Applicable Standards).

SUSTAINED with leave to amend.

Defendant must

plead facts which constitute new matter, i.e., the applicable statutes, ordinances, regulations, industry standards, and practices which excuse the employee's hand striking Plaintiff's face.

Motion To Strike

Meet and Confer

The Declaration of James C.D. Carr reflects

that Plaintiff's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 435.5.

Discussion

Plaintiff moves to strike the following portions of the Amended Answer:

Portion 1. "Apple reserves the right to

amend its Answer and to adopt any and all other defenses asserted or to be asserted by any other defendant, and reserves the right to assert additional affirmative defenses as necessary and appropriate, to the extent such defenses are affirmative defenses and are applicable to any claim against Apple." (Answer, p. 2:2-5).

DENIED.

Although Defendant must seek leave to

amend to assert new defenses, this language in the preamble will be permitted.

Portion 2. "As further, separate, and affirmative

defenses to the Complaint and any purported cause of action asserted therein as against Apple, and without assuming the burden of proof on matters as to which it

has no burden.” (Answer, p. 2:5-8).

DENIED.

This language in the preamble will be permitted.

Portion 3. “Apple reserves the right to assert any other defenses that may become available or apparent during discovery proceedings in this matter.” (Answer, p. 4:19-20).

DENIED.

Although Defendant must seek leave to amend to assert new defenses, this language will be permitted.

Portion 4. “That Apple be awarded its reasonable attorneys’ fees and costs, as permitted by applicable law.” (Answer, p. 4:28 – 5:1.).

GRANTED without leave to amend.

Per Code Civ.

Proc. § 431.30(c), “[a]ffirmative relief may not be claimed in the answer.” Further, there is no basis for a defendant to recover attorney’s fees regarding a single negligence cause of action involving one plaintiff’s personal injury.

Defendant is given 30 days’ leave to amend where indicated.